

22STCV19003 22STCV19003

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Case Number: 22STCV19003 Hearing Date: September 11, 2026 Dept: 734

STEPHEN BENVENISTE, Plaintiff,

LOS ANGELES UNIFIED SCHOOL DISTRICT; and DOES 2 through
25, inclusive, Defendants.

Case No. 22STCV19003

Hearing Date: September
9, 2026

RULINGS RE: DEFENDANT'S
MOTIONS IN LIMINE Nos. 1-14

The Court heard argument on Defendant Los Angeles Unified Scholl District's ("Defendant's" or "the District's") motions in limine no.

1-14 on September 9, 2026. The Court has
considered the moving papers, opposition papers, and reply papers on each of these
motions, as well as the extensive argument from counsel on each of the motions.

Motion in Limine No. 1 — Preclude the “90-Year History
of Warner Avenue Elementary” document

Ruling: GRANTED for the reasons stated by the Court during
the hearing. The disputed document, titled
“90-Year History of Warner Avenue School,” (hereinafter, the “90 Year History”)
is excluded from evidence for: lack of authentication
and/or foundation, the high risk of jury confusion and consumption of time
needed to provide context, and the fact that the document itself notes that it may

contain errors and that it was compiled from hearsay materials with unknown provenance..

The Court notes that in the opposition, Plaintiff argues that the document was the basis for his statement that Jeff Felz was the Principal of Warner Avenue School to whom he reported abuse during the 1987-1988 school year. This testimony does not require the admission of the document itself. To the extent that Plaintiff wishes to explain that he relied on the 90-Year History document as an explanation of the basis for his later identification of Felz, he may not describe or refer to the 90-Year History as an official document, or as an LAUSD document, and may simply state that he found information on the Internet on which he based his conclusion. Defendant's arguments about why the document itself is inadmissible (lack of foundation, no identification of authorship, and internal disclaimers of errors) shall be permissible grounds for cross-examination.

Motion in Limine No. 2 — Preclude testimony of teasing and argument that adults should have known.

Ruling: DENIED, without prejudice to objection at trial.

Background. The District moves to preclude Plaintiff from testifying that he was teased by classmates and from arguing that adults at Warner should have known of McLeod's conduct, contending the testimony is speculative, irrelevant, unduly prejudicial, and improper character evidence. Plaintiff responds that constructive knowledge — i.e., that the District should have known — is an essential element of his negligence claim, and that the teasing and McLeod's playground reputation are relevant to that element.

A school district may be liable where it knew or, exercising reasonable care, had reason to know of a foreseeable risk and failed to take reasonable protective measures; constructive knowledge is a recognized basis of liability distinct from actual knowledge. (*Doe v. City of Los Angeles* (2007) 42 Cal. 4th 531, 547-48.)

Evidence bearing on what school staff knew or should have known is therefore directly relevant to a primary issue, and it may not be excluded on a blanket basis merely because it is damaging to the District.

Defendant contends that Plaintiff has made a late shift of theory that results in prejudice to the defense, because the Defendant did not

designate an expert to deal with a constructive notice/knowledge theory. However, a potential constructive knowledge theory was disclosed early in the case.

The Second Amended Complaint, filed on February 17, 2023, makes specific reference to “constructive knowledge” (SAC ¶ 41) and alleges that “[a]t all times relevant and material hereto, DEFENDANTS knew, or in the exercise of reasonable care should have known, or were otherwise on notice, that PERPETRATOR had a propensity for the conduct that caused injury to Plaintiff; specifically, that PERPETRATOR had a propensity to engage in the sexual abuse or assault of children.” (SAC ¶ 38.)

Plaintiff continued to invoke the terminology of a constructive knowledge theory in opposition to Defendant’s motion for summary judgment: “Defendant repeats its same argument that because LAUSD did not know or should have known about McLeod’s dangerous propensities, Plaintiff cannot succeed on his claim for negligent hiring, retention, and supervision. Plaintiff already addressed above there were multiple instances that did, or at the very least should have put LAUSD on notice of McLeod’s dangerous nature.” (Pltf’s Opp. to Def’t’s Mot. Summ. Jmt. (Jan 2, 2025) at 7-8.)

Since Plaintiff pled both actual and constructive knowledge in the operative pleading, never disclaimed a constructive knowledge theory, and continued to argue both grounds for possible liability through the summary judgment briefing and beyond, there is no unfair surprise or late shift in theory here.

The motion is therefore DENIED, without prejudice to specific foundation, relevance, or section 352 objections directed to particular testimony as offered at trial.

Motion in Limine No. 3 — Preclude Plaintiff from arguing that Marilyn Fuller testified Felz was the 1987–1988 principal.

Ruling: GRANTED

in part. As the Court stated at the hearing, any references (in opening statements, witness examination, or argument) to Fuller’s testimony regarding Felz’s start date as principal must be made in the context of the original question asked during the deposition, i.e., it must be made clear that she was asked about administrators at Warner

Avenue School during the time frame of calendar year 1987-1988, not school years, and that she identified Felz as “one” administrator at Warner Avenue School during that time frame. Plaintiff may cross-examine Fuller regarding her corrections to her deposition testimony. Argument that fairly reflects Fuller’s testimony is permissible; argument that Ms. Fuller affirmatively testified Felz was the principal during 1987–1988 would misstate the record and is not permitted.

Motion in Limine No. 4 — Exclude the terms “red flags,” “warning signs,” and “grooming”

Ruling: GRANTED
for the reasons stated by the Court during the hearing.

Motion in Limine No. 5 — Preclude “irrelevant matters” in McLeod’s personnel file

Ruling: DENIED, without prejudice. Admissibility of the 1993 Notice of Unsatisfactory Acts and related personnel records will be determined at trial, subject to foundation, resolution of hearsay as to the documents, and a section 352 balancing.

The District seeks to exclude matters in McLeod’s personnel file postdating Plaintiff’s 1987–1988 enrollment (principally a Notice of Unsatisfactory Acts documenting inappropriate conduct with male students) arguing the post-departure conduct is irrelevant, confusing, and improper character/common-scheme evidence.

Evidence Code Section 1101(a) bars the use of character evidence to prove a person’s conduct on a specific occasion. However, section 1101(b) permits evidence that a person committed a crime, civil wrong, or other act when relevant to prove a fact “such as motive, opportunity, intent, preparation, plan, knowledge, identity, absence of mistake or accident,” other than disposition to commit such an act.

Defendant argues that evidence concerning McLeod’s possible misconduct after the events alleged in the complaint are irrelevant to whether Plaintiff was abused by McLeod.

Plaintiff argues that subsequent conduct may still be relevant, citing *People v Leon* (2015) 61 Cal.4th 569, and *People v. Ewoldt* (1994) 7 Cal.4th 380. Leon specifically criticizes other authorities that refer to Evidence Code section 1101(b) evidence as “prior offenses” or “prior bad acts” evidence, because conduct offered under section 1101(b) may have “occurred after the charged events, so long as the other requirements

for admissibility are met.” (Leon, supra, 61 Cal.4th at 597-98.)

Admissibility under section 1101(b) depends on the fact for which the character evidence is offered, and the similarity of the other acts to the act at issue:

Specifically, the uncharged act must be relevant to prove a fact at issue (Evid.Code, § 210), and its admission must not be unduly prejudicial, confusing, or time consuming (Evid.Code, § 352).

The relevance depends, in part, on whether the act is sufficiently similar to the current charges to support a rational inference of intent, common design, identity, or other material fact. (People v. Kipp (1998) 18 Cal.4th 349, 369, 75 Cal.Rptr.2d 716, 956 P.2d 1169.) “The least degree of similarity (between the uncharged act and the charged offense) is required in order to prove intent. [Citation.] ... In order to be admissible to prove intent, the uncharged misconduct must be sufficiently similar to support the inference that the defendant ‘ ‘probably harbor[ed] the same intent in each instance.’ [Citations.]’ [Citation.]” (Ewoldt, supra, 7 Cal.4th at p. 402, 27 Cal.Rptr.2d 646, 867 P.2d 757.) Greater similarity is required to prove the existence of a common design or plan. In such a case, evidence of uncharged misconduct must demonstrate “ ‘not merely a similarity in the results, but such a concurrence of common features that the various acts are naturally to be explained as caused by a general plan of which they are the individual manifestations.’ [Citation.]” (Ibid.) To show a common design, “evidence that the defendant has committed uncharged criminal acts that are similar to the charged offense may be relevant if these acts demonstrate circumstantially that the defendant committed the charged offense pursuant to the same design or plan he or she used in committing the uncharged acts.” (Id. at p. 403, 27 Cal.Rptr.2d 646, 867 P.2d 757.) Finally, the greatest similarity is required to prove identity. When offered on this point, “the uncharged misconduct and the charged offense must share common features that are sufficiently distinctive so as to support the inference that the same person committed both acts.” (Ibid.) These common features need not be unique or nearly unique; “features of substantial but lesser distinctiveness may yield a distinctive combination when considered together.” (People v. Scott (2011) 52 Cal.4th 452, 473, 129 Cal.Rptr.3d 91, 257 P.3d 703.)

(Leon, supra, 61 Cal.4th at 597-98.)

The similarity between the acts referenced in McLeod's personnel file Plaintiff describes — McLeod placing his mouth to another student's ears; touching and patting their buttocks; and similar conduct — is sufficiently similar to Plaintiff's allegations to satisfy the relevance requirement for issues of intent or common plan under section 1101(b).

Section 1101(b) also requires that proffered evidence survive the balancing test of section 352, which requires substantial probative value given the inherent prejudice of uncharged-act evidence. Because this weighing depends on the specific documents and testimony offered and on resolution of the documents' own hearsay/foundation issues, wholesale exclusion in limine is inappropriate. (*Kelly v. New W. Fed. Sav.* (1996) 49 Cal. App. 4th 659, 671.)

Disposition. DENIED, without prejudice; the Court will rule on specific items of personnel-file evidence, and on any limiting instruction, as offered at trial.

Motion in Limine No. 6 — Preclude argument that the perpetrator abused others ("me too" evidence)

Ruling: DENIED, without prejudice, subject to foundation and a section 352 balancing, including reasonable limits on cumulative testimony.

For the reasons discussed above with regard to motion #5, a categorical pretrial bar is inappropriate, as there is a basis for 1101(b) relevance, subject to objections for foundation and/or section 352.

Motion in Limine No. 7 — Preclude Dr. Daniel Ravanshenas from offering opinions

Ruling: GRANTED IN PART and DENIED IN PART. Dr. Ravanshenas may not offer expert opinion testimony (including opinions on diagnosis, treatment, or causation), because he was not designated as an expert. He is not categorically barred, however, from testifying as a percipient (fact) witness to Plaintiff's 2018 disclosure of abuse, subject to hearsay rulings at trial.

Motion in Limine No. 8 — Preclude Plaintiff from arguing he reported to anyone besides Jeffrey Felz

Ruling: DENIED for the reasons stated at the hearing, without prejudice to objections at trial. The District may impeach Plaintiff with his prior discovery responses and testimony.

The Court of Appeal has held that it is a misuse of a motion in limine to attempt to compel a witness or a party to conform his or her trial testimony to a preconceived factual scenario based on testimony given during pretrial discovery — absent issue preclusion, discovery sanctions, or a clear case of waiver or estoppel. (Kelly, supra, 49 Cal. App. 4th at 672.) The District identifies no such basis.

If Plaintiff's position on material factual issues has changed over the course of this case, the changes are fair game for impeachment, but the inconsistency between his earlier and later accounts, and his explanation for it, present questions of credibility for the jury, not grounds for a pretrial evidentiary bar. (Vorse v. Sarasy, 53 Cal. App. 4th 998, 1007-08.).

Motion in Limine No. 9 — Preclude testimony of Jeffrey Felz regarding actions he took after alleged incidents were reported to him

Ruling: DENIED, without prejudice. The Court will rule on specific questions and answers, and on any limiting instruction, as the testimony is offered at trial, subject to foundation and an Evidence Code section 352 balancing.

The District moves to preclude Mr. Felz from testifying about actions he took after alleged incidents involving McLeod were reported to him, arguing that such conduct is irrelevant to whether the District had notice of Plaintiff's harm. The District also argues that the evidence would cause confusion among the jury with the issues of notice and Felz's subsequent actions. The District also emphasizes that Felz became principal in August 1988, after Plaintiff left Warner, so his investigations occurred years after Plaintiff left Warner Avenue School.

Plaintiff opposes the motion, arguing that Felz's testimony about how he received, investigated, and responded to reports of McLeod's conduct is relevant to the District's breach of duty, to its policies and practices for handling abuse reports at the relevant time, to whether Felz was the principal to whom Plaintiff reported, and to a claimed pattern of inaction.

Plaintiff's claims are for negligence and negligent supervision and retention, which require proof of breach, not notice alone. Evidence of how Felz, as principal, received and

handled reports of McLeod's conduct is relevant to the standard of care the District applied and to whether it responded reasonably; the Court may not exclude, on a blanket basis, evidence relevant to the primary issues of the litigation merely because it is damaging to the District.

Such evidence also bears on the disputed question of whether Felz was the administrator to whom Plaintiff reported, which is an issue that Plaintiff is entitled to develop through examination, with credibility and weight reserved for the jury. (Vorse, *supra*, 53 Cal.App.4th at 1008.)

The District's premise that conduct postdating 1987–1988 is categorically irrelevant is too broad.

As noted above, evidence of misconduct that postdates the events alleged in a particular case is not barred by section 1101(b), so long as the other requirements for admissibility are met. Felz's account of how he handled successive reports of similar conduct by the same teacher may support an inference regarding the District's plan or practice for responding to such reports at or around the relevant time.

Motion in Limine No. 10 — Preclude evidence/argument that the District failed to report to Child Protective Services

Ruling: GRANTED IN PART and DENIED IN PART.

Defendant contends that Plaintiff's operative complaint alleges negligence and negligent hiring/supervision/ retention and pleads liability pursuant to California Government Code §§ 815.2, 815.4 and/or 815.6, but in his statement of the case and trial brief, Plaintiff asserted for the first time that the District failed to comply with its mandatory duty to report the allegations of sexual abuse to law enforcement. The District argues this new failure-to-report theory was never pleaded with particularity, no government claim was presented, and the District would be prejudiced because it retained no reporting-standards expert.

Plaintiff responds that the motion is an improper disguised summary-adjudication motion and that CANRA and section 815.6 were placed in issue by the complaint.

At the hearing, Plaintiff's counsel indicated that

Plaintiff does not intend to try a separate, unpleaded cause of action for breach of the mandatory duty to report under the Child Abuse and Neglect Reporting Act (CANRA). The Court accepts that statement by Plaintiff and will hold Plaintiff's counsel to that representation, including the statement by counsel that any jury instruction on a CANRA-based theory is withdrawn.

A motion in limine, however, [is not] designed to . . . replace the dispositive motions prescribed by the Code of Civil Procedure, and an in limine motion that seeks to exclude all evidence supporting part of a claim is a disguised motion for summary adjudication that is disfavored. However, Defendant's handling of reports of McLeod's conduct, including whether reports were investigated or reported onward, is relevant to the pleaded negligence and negligent-supervision claims and to breach and notice, independently from any standalone CANRA cause of action.

A claim for negligence per se is a subspecies of negligence claim.

Under the doctrine of negligence per se, compliance with the standard of conduct established by the relevant statute, ordinance, or regulation is adopted as the duty of care. (*Alarid v. Vanier* (1958) 50 Cal.2d 617, 622, 327 P.2d 897.) This creates a rebuttable presumption of negligence where the statute, ordinance, or regulation is violated.

...

Negligence per se is an evidentiary doctrine, rather than an independent cause of action. (*Quiroz v. Seventh Ave. Ctr.* (2006) 140 Cal.App.4th 1256, 1285–1286, 45 Cal.Rptr.3d 222.) It can be applied generally to establish a breach of due care under any negligence-related cause of action. (*Norman v. Life Care Centers of America, Inc.* (2003) 107 Cal.App.4th 1233, 1248, 132 Cal.Rptr.2d 765.) Therefore, the doctrine of negligence per se is within the scope of pleadings that allege general negligence, as proof of a breach of duty is not limited to common law standards of care. (*Brooks v. E.J. Willig Truck Transp. Co.* (1953) 40 Cal.2d 669, 680, 255 P.2d 802.)

(*Jones v Awad* (2019) 39 Cal.App.5th 1200, 1210.)

CANRA is a recognized basis for negligence per se claims (*Roe*

v. Hesperia Unified Sch. Dist., 85 Cal. App. 5th 13.) Even if the Court does not instruct the jury on the rebuttable presumption of negligence per Evidence Code section 669, the existence of a reporting duty informs the standard of care; the functional difference between negligence per se and garden variety negligence claims is simply the framing of the issue for the jury. The Court accordingly will not exclude, in advance and on a blanket basis, evidence of Defendant's response to reports of abuse.

Therefore, the motion is GRANTED IN PART (no presentation of/instruction on a separate unpleaded/unpresented CANRA or negligence per se cause of action) and DENIED IN PART (evidence of the District's response to reports of abuse is not excluded wholesale).

Motion in Limine No. 11 — Preclude certain opinions of Scott Grover, Ph.D.

Ruling: DENIED IN PART and GRANTED IN PART. The motion to exclude Dr. Grover's opinions wholesale is DENIED; the foundation and scope objections are better resolved by objection at trial or, if Defendant elects, an Evidence Code section 402 hearing. The motion is GRANTED to the limited extent that Dr. Grover may not opine on Plaintiff's credibility or truthfulness or offer legal conclusions.

Dr. Grover is Plaintiff's designated retained psychological expert. The District challenges three categories of opinion: that the decline in Plaintiff's standardized test scores relates to the abuse, which the District says exceeds Grover's expertise; that Plaintiff's confusion about the principal's identity reflects trauma, which the District calls advocacy and improper vouching; and opinions drawn from McLeod's personnel file, which the District calls improper character evidence.

Plaintiff responds that these opinions fall within Grover's psychological expertise and that his review of collateral records is methodologically proper.

An expert may offer opinion on a subject sufficiently beyond common experience that the opinion . . . would assist the trier of fact, if qualified and based on matter that reasonably may be relied upon. (Cal. Evid. Code § 720 (West)) (Cal. Evid. Code § 801 (West)) The trial court is a gatekeeper that must exclude opinion that is based on matter of a type on which an expert may not reasonably

rely, . . . based on reasons unsupported by the material on which the expert relies, or . . . speculative, but must not resolve scientific controversies or usurp the jury. (Sargon Enters., Inc. v. Univ. of S. California, 55 Cal. 4th 747.)

Two firm limits apply: an expert may not opine that a witness is or is not truthful, because that usurps the jury's credibility function (People v. Julian, 34 Cal. App. 5th 878); and an expert may not testify about law or give legal conclusions. (Nevarez v. San Marino Skilled Nursing & Wellness Center (2013) 221 Cal.App.4th 102, 122.) Within those limits, the District's objections to (1) whether Grover is qualified to relate declining test scores to trauma, and (2) the permissible use of his review of McLeod's personnel file, go to foundation and weight and are best resolved on a developed record. Moreover, it is possible for personnel-file materials to be relied upon as part of an expert's methodology (subject to Sanchez) even where the underlying documents' independent admissibility is separately governed by section 1101. (Cal. Evid. Code §§ 1101, 801.) These are appropriate subjects for a section 402 hearing if the District wishes to test them before Grover testifies.

Disposition. DENIED IN PART (no wholesale exclusion; foundation/scope reserved for trial or a section 402 hearing) and GRANTED IN PART (no opinion on Plaintiff's credibility and no legal conclusions).

Motion in Limine No. 12 — Preclude Marian Stephens, Ed.D., or, alternatively, hold a section 402 hearing

Ruling: The motion to exclude Dr. Stephens outright is DENIED; the alternative request for an Evidence Code section 402 hearing is GRANTED.

Dr. Stephens is Plaintiff's designated retained expert on student safety and school-district liability. The District argues expert testimony is unnecessary because the case turns on a factual dispute; that Stephens lacks California elementary-school experience during the relevant period; that her opinions are conclusory, rest on post-1988 events, offer legal conclusions on duty and standard of care, and improperly vouch for Plaintiff; and that Plaintiff failed to produce her for deposition. The deposition did take place after the motion was fully briefed; Defendant argues that the deficiencies in Stephens' testimony became even more pronounced at the deposition. However, the Court cannot review the entirety of the deposition to ascertain whether or not the deposition testimony corroborates Defendant's contentions.

Plaintiff responds that Stephens has decades of administrative

and superintendent experience across several states including California, and that her opinions concern administrative and supervisory failures, not credibility.

Expert qualification requires special knowledge, skill, experience, training or education sufficient for the particular subject, a determination for the Court. (Cal. Evid. Code § 720.) A witness's degree of qualification ordinarily goes to weight; outright exclusion is reserved for a genuine lack of the relevant expertise. The reliability and foundation of the opinions are governed by the Court's gatekeeping duty to exclude speculative or unsupported opinion. (*Sargon Enters., Inc. v. Univ. of S. California* (2012) 55 Cal. 4th 747)

Two limits again apply and will define the scope of any testimony:

Dr. Stephens may not offer legal conclusions, including that the District owed or breached a legal duty or fell below the standard of care as a matter of law (*City of Rocklin v. Legacy Fam. Adventures-Rocklin, LLC*, 86 Cal. App. 5th 713 , and she may not vouch for Plaintiff's credibility or opine that Plaintiff was in fact abused.

Reliance on events postdating 1987–1988 is permissible only insofar as it satisfies section 1101(b) and section 352. (*Ewoldt*, *supra*, 7 Cal. 4th at 402

Given the number and specificity of the District's objections, the efficient course is to resolve qualification, reliability, and scope at a section 402 hearing outside the presence of the jury. (See, e.g., *Sargon*, *supra*, 55 Cal. 4th at 755.)

Motion in Limine No. 13 — Preclude itemization of non-economic damages

Ruling: GRANTED.

Pain and suffering is a unitary concept that encompasses physical pain and various forms of mental anguish and emotional distress, and its components are not calculated as separate awards. (*Corenbaum v. Lampkin* (2013), 215 Cal. App. 4th 1308, 1333; *Loth v. Truck-A-Way Corp.* (1998) 60 Cal. App. 4th 757 ("In California, a pain and suffering award may include compensation for the plaintiff's loss of enjoyment of life. Loss of enjoyment of life, however, is only one component of a general damage award for

pain and suffering. It is not calculated as a separate award”).) Instructing on or separately valuing a sub-component opens the possibility of double compensation and creates a risk of duplicative recovery. (Huff v. Tracy (1976), 57 Cal. App. 3d 939, 944 “A trial court errs when it follows the pain-and-suffering instruction by another which tells the jurors that they may also, that is, additionally, award damages for injury to the enjoyment of life.”)

Plaintiff’s counsel may inform the jury of the total sum sought and argue how the jury should approach it; the enumeration of descriptive categories in CACI No. 3905A is a permissible aid to the jury’s assessment of a single non-economic award. However, assigning a distinct dollar figure to each label, or to each act, cannot be permitted pursuant to *Loth* and *Huff*.

Motion in Limine No. 14 — Preclude student witnesses not previously disclosed in discovery

Ruling: DENIED. Plaintiff is not precluded from calling Joseph Meller, Charles Newman, Tianna Brown, Meg Reinis, and Nicole Ladin as witnesses at trial by reason of the timing of their disclosure.

Discovery closed in March 2025, and the parties later reopened discovery by agreement for the limited purpose of deposing one witness, William Snow. In March 2026, Plaintiff located five individuals whom he contends have information relevant to notice and to corroboration of the abuse: Joseph Meller, Charles Newman, Tianna Brown, Meg Reinis, and Nicole Ladin.

On March 30, 2026, Plaintiff’s counsel identified these witnesses to the District by name and provided their contact information. Plaintiff then applied *ex parte* to reopen discovery to depose them; the District opposed the application. The Court denied the *ex parte* application, citing the concern that reopening discovery would require continuing the then-imminent June 8, 2026 trial date. Trial was subsequently continued to September 14, 2026. The District moves to exclude the five witnesses on the ground that they were not disclosed during discovery.

California courts recognize two circumstances in which a witness may be precluded from testifying on discovery grounds: first, where the party willfully omitted the witness from a discovery response; second where the party violated an order compelling a further response. (*Mitchell v. Superior Court* (2015) 243 Cal.App.4th 269, 272 (granting writ of mandate

reversing trial court order excluding witnesses based on failure to identify them in interrogatory response.)) Neither of these situations exists here. Plaintiff may have disclosed the witnesses' identities after the discovery cutoff passed, but the witnesses were disclosed sufficiently in advance of the then-extant trial date for Defendant to have taken their depositions. The Court had not issued any order directing Plaintiff to disclose additional witnesses, so Plaintiff did not violate an order of the Court regarding discovery. California imposes no continuing duty to supplement a response that was complete and correct when served. (*Saxena v. Goffney* (2008) 159 Cal. App. 4th 316, 332.)

Moreover, Defendant has not shown the prejudice that would justify the extraordinary remedy of exclusion. By opposing Plaintiff's request to reopen discovery, Defendant made a choice to forego depositions of these witnesses. Once the trial date was moved to September 2026, Plaintiff could have taken advantage of the additional time to depose the witnesses. Defendant does not identify any specific investigative step it was foreclosed from taking after the March 2026 disclosure.